to say that the defense would deny a number of the state's assertions, including the contention that Umkhonto we Sizwe was the military wing of the ANC. He said that the leaders of MK and the ANC "endeavored to keep these two organizations entirely separate. They did not always succeed in this," he said, "but . . . every effort was made to achieve that object." He emphatically denied that the ANC took orders from the Communist Party. He said the defense would challenge the allegation that Goldberg, Kathrada, Bernstein, and Mhlaba were members of Umkhonto. He stated that the defense would show that Umkhonto had not in fact adopted Operation Mayibuye, and that MK had not embarked on preparations for guerrilla warfare.

"That will be denied?" asked Justice de Wet incredulously.

"That will be denied," replied Bram. "The evidence will show that while preparations for guerrilla warfare were being made, no plan was ever adopted. It was hoped throughout that such a step could be avoided."

Then, in his soft voice, Bram said, "The defense case, My Lord, will commence with a statement from the dock by accused number one, who personally took part in the establishment of Umkhonto, and who will be able to inform the court of the beginnings of that organization."

At this, Yutar popped up from the table and cried, "My Lord! My Lord!" He was distressed that I would not be testifying for he had undoubtedly prepared for my cross-examination. "My Lord," he said rather despondently, "a statement from the dock does not carry the same weight as evidence under oath."

"I think, Dr. Yutar," Justice de Wet responded dryly, "that counsel for the defense have sufficient experience to advise their clients without your assistance." Yutar sat down.

"Neither we nor our clients are unaware of the provisions of the criminal code," replied Bram. "I call on Nelson Mandela."

I rose and faced the courtroom and read slowly.

> I am the first accused.
>
> I hold a Bachelor's degree in Arts, and practiced as an attorney in Johannesburg for a number of years in partnership with Mr. Oliver Tambo. I am a convicted prisoner, serving five years for leaving the country without a permit and for inciting people to go on strike at the end of May 1961.